

Banksia Guarantor Application Form

SECTION 1 – Property & Tenant Details

Address of Property Being Applied For:

Room Number:

Total Monthly Rent (£):

Number of Occupiers:

Number of Guarantors:

Tenant (Applicant) Full Name:

Relationship to Applicant:

This person is: Guarantor

SECTION 2 – Guarantor Personal Details

Title:

First Name(s):

Surname:

Date of Birth:

Nationality:

Marital Status:

National Insurance Number:

Mobile:

Home:

Work:

Current Address

Postcode:

Time at Address:

Ownership Status:

Owner

Tenant

Living with Family

Living with Friends

Other:

Previous Address (if less than 3 years at current)

Postcode:

Time at Address:

SECTION 3 – Homeownership & Mortgage Details

If you are a homeowner, complete this section.

Full Address of Owned Property:

Type of Ownership: Sole Owner Joint Owner Company-Owned

If joint/company, other owner/company name:

Mortgage Details

Mortgage Lender:

Mortgage Account Number:

Approximate Mortgage Balance (£):

Approximate Property Value (£):

Is the mortgage in arrears? No Yes (details):

Additional Properties Owned

- 1.
- 2.
- 3.

SECTION 4 – Identity, Proof of Address & Employment

Identity Document: Passport Driving Licence BRP / National ID

ID Number: Expiry Date:

Proof of Address (within last 3 months):

Bank Statement

Utility Bill

Council Tax

HMRC Letter / Payslip

Employment Status: Employed Self-Employed Student

Retired

Unemployed

Homemaker

Occupation:

Employer/Accountant:

Employer Email:

Employer Phone:

SECTION 5 – Income, Bank Details & Checklist

Income Evidence:

Gross Annual Income (£):

Regular Commission (£):

Other Income (£):

Bank Details (Verification Only – not used for collecting payments)

Bank Name:

Account Holder:

Sort Code:

Account Number:

Document Checklist (to be completed by Guarantor)

Government ID provided

Proof of address (within last 3 months)

Income evidence provided (payslips/bank statements)

Employer/accountant reference (if applicable)

This application form fully completed

Indemnity declaration reviewed and signed

Guarantor Indemnity Declaration

1. Guarantee and Scope

I, the undersigned Guarantor, agree to act as guarantor in relation to the named Tenant's Tenancy Agreement with Banksia ("the Tenancy").

This guarantee applies strictly to the specific Tenancy Agreement entered into with Banksia and does not extend to any separate or unrelated agreement unless expressly agreed in writing by the Guarantor.

2. Periodic Tenancy Continuation

The Guarantor acknowledges that the Tenancy may continue on a periodic basis and agrees that this guarantee shall remain valid and enforceable throughout the duration of the Tenancy, including any periodic continuation, until the Tenancy is lawfully terminated and vacant possession of the property is returned to Banksia.

3. Extent of Liability

The Guarantor agrees to indemnify Banksia for any unpaid rent lawfully due under the Tenancy and for reasonable and evidenced costs arising directly from the Tenant's breach of the Tenancy, including damage to the property beyond fair wear and tear, cleaning required to restore the property to its original condition (acting reasonably), loss of keys or access devices, and necessary repair or replacement costs attributable to the Tenant.

For the avoidance of doubt, this guarantee does not extend to indirect or consequential losses, including but not limited to loss of profit or unspecified charges.

4. Holding Over and Failure to Vacate

Where the Tenant remains in occupation of the property beyond the agreed termination date or fails to vacate as required, the Guarantor shall remain liable for any rent or equivalent charges due for continued occupation and any reasonable costs incurred in recovering possession until vacant possession is returned.

5. Absconding or Non-Compliance

Where the Tenant absconds, becomes uncontactable, abandons the property, or otherwise fails to comply with the terms of the Tenancy, the Guarantor shall remain liable for the Tenant's obligations under this agreement until the Tenancy is lawfully terminated and vacant possession is obtained, including any rent and permitted charges accruing during that period.

6. Relocation and Replacement Tenancy

Where the Tenant relocates to another property managed by Banksia under a replacement tenancy agreement, this guarantee may continue to apply provided that the new tenancy is substantially on similar terms, the Guarantor is notified in writing of the relocation, and the Guarantor does not object in writing within 7 days of such notice. In the absence of written objection within that period, the Guarantor shall be deemed to have accepted the continuation of this guarantee in respect of the replacement tenancy.

7. Limitation of Liability

The Guarantor's liability is limited to the obligations arising under the Tenancy and shall not extend beyond the duration of the Tenancy (including any periodic continuation) or the nature of obligations expressly set out within this agreement.

Guarantor Indemnity Declaration (continued)

8. Continuing Indemnity

This is a continuing indemnity which shall remain in force until all obligations of the Tenant under the Tenancy have been satisfied in full.

9. Tenant Incapacity and Personal Events

The Guarantor acknowledges and agrees that their obligations under this guarantee shall continue in full force notwithstanding any circumstance affecting the Tenant's ability to perform their obligations, including but not limited to death, serious illness, incapacity (physical or mental), hospitalisation, detention, imprisonment, legal or immigration enforcement, rehabilitation, disappearance, or any other personal or legal incapacity.

10. External Events and Force Majeure

The Guarantor further agrees that their obligations shall continue notwithstanding any external event or disruption, including but not limited to Covid-19 or any future pandemic, natural disaster, government restriction, building closure, cyber incident, digital infrastructure failure, or any event of a similar nature affecting the Tenant's ability to occupy or make payment.

11. Direct Liability and Demand

Banksia shall be entitled to demand payment directly from the Guarantor as soon as any sum becomes due under the Tenancy, and shall not be required to pursue, trace, or take enforcement action against the Tenant prior to seeking recovery from the Guarantor.

12. Enforcement Rights

If the Guarantor fails to make payment of any amount due and a judgment is obtained, Banksia may enforce such judgment by any lawful means, including but not limited to attachment of earnings, third-party debt orders, or charging orders against property owned by the Guarantor.

13. Survival of Guarantee

This guarantee shall remain valid and enforceable notwithstanding the expiry, termination, surrender, variation, renewal or continuation of the Tenancy, provided that such continuation relates to the same tenancy or a permitted replacement tenancy under this agreement.

14. Fairness and Proportionality

Nothing in this agreement creates unlimited or open-ended liability, and the Guarantor's obligations are limited to those that are reasonable, proportionate, and directly connected to the Tenant's obligations under the Tenancy.

Guarantor Signature:

Print Name:

Date:

Witness Signature:

Witness Name & Address: